

24VECV04770 24VECV04770

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-28

Motion: MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION; AND FOR SANCTIONS

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C07%2F28%2F2026

Source SHA-256: 0d63b75a0fa6bdd778cd2c772e3194c76b66eeac8a120a0d02f16478455733da

Case Number: 24VECV04770 Hearing Date: July 28, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ENIE

IRAWATI SOEBROTO, individually and as successor in interest to decedents

ANDREA BULLO and MARCO BULLO,

Plaintiffs,

vs.

FORD MOTOR COMPANY, ET AL.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 24VECV04770

[TENTATIVE]

ORDER RE: MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION; AND FOR
SANCTIONS

Dept.

I

HEARING

DATE: July 28, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: Septmeber 26, 2024

TRIAL

DATE: December 7, 2026

I.

BACKGROUND

This action arises from a two-vehicle rear-end crash that occurred on November 22, 2022 on Mulholland Drive. The accident resulted in the deaths of Andrea Bullo and Marco Bullo, the husband and son of Plaintiff Enie Irawati Soebroto ("Plaintiff"). The accident involved a 1965 Ford Mustang (the "Mustang") driven by Andrea Bullo and a Toyota Camry driven by Defendant Kevin Ivan Gonzalez. Plaintiff alleges the accident was caused by the negligence of Defendant Gonzalez. Plaintiff also alleges the Mustang designed and manufactured by Ford Motor Company ("Ford") was defective, as it was more dangerous than a reasonable consumer would reasonably expect when used as marketed and was unreasonably dangerous by design from a crashworthiness or crash protection standpoint.

On September 26, 2024, Plaintiff filed this action individually and as the successor-in-interest to Andrea and Marco Bullo. On October 11, 2024, Plaintiff filed the First Amended Complaint. On January 16, 2025, Plaintiff filed the operative Second Amended Complaint alleging: (1) strict products liability; (2) negligence; (3) motor vehicle negligence.

On June 25, 2026, Plaintiff filed a motion to compel further response and to set date for production from Defendant Ford to Requests for Production, Set One, Nos. 6-9; Set Three, No. 59; and Set Four, Nos. 85-86. On July 15, 2026, Defendant Ford filed an opposition to the motion. On July 21, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARDS

Pursuant to Code of Civil Procedure sections 2031.310, subdivision (a), parties may move for a further response to requests for production where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code of Civ. Proc., §2031.310, subd. (a).) The moving party is entitled to sanctions if it prevails, unless the court finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code of Civ. Proc., §2031.310, subd. (c).)

Where a party is seeking to compel further responses to requests for document production, the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (Code of Civ. Proc., §2031.310, subd. (b)(1); *Kirkland v. Supr. Ct.* (2002) 95 Cal.App.4th 92, 98 (“Once good cause was shown, the burden shifted to Kirkland to justify his objection”); *Glenfed Develop. Corp. v. Supr. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established by the moving party, the burden then shifts to the responding party to justify any objections made to document disclosure. (*Hartbrodt v. Burke* (1996, 2nd Dist.) 42 Cal.App.4th 168, 172-174.)

III.

DISCUSSION

At issue are the following Requests for Production of

Documents: (1) RFP Nos. 6-9, set one;

(2) RFP No. 59, set three; and (3) RFP Nos. 85-86, set four. (*Cazares Dec.*, ¶¶2-4.) These RFPs fall into three categories: (1) prior deposition transcripts of Ford's

engineers and employees from prior drop-in fuel tank cases identified by Ford (RFP Nos. 6-9); (2) corporate-level crash-testing and engineering materials, the “Product Planning Committee and Robert Alexander materials” (RFP No. 59); and (3) “Rear Crash Task Force Materials,” (RFP Nos. 85-86) which are limited to materials concerning rear-impact fuel-system integrity, fuel leakage, fire risk, ignition and countermeasures, “drop in” or “flange mounted” fuel tank designs, limited to a 1968–mid1990s timeframe and to core technical materials, together with targeted search terms.

Parties engaged in extensive meet and confer efforts, including an informal discovery conference with the Court on April 17, 2026. (*Id.* at ¶¶5-6.) Parties' met and conferred further after the IDC and arrived at a resolution. (*Id.* at ¶11.) Ford agreed to produce the Product Planning and Robert Alexander Materials on or before June 25, 2026 and to the limitations and search terms to the Rear Crash Task Force Materials. (*Id.*) Ford indicated that as of June 18, 2026, it

had not confirmed that it had requested the responsive transcripts of Ford employees from its prior outside counsel in Ford's produced List of Lawsuits. (Id.) Plaintiff filed this motion to compel further responses on June 25, 2026, asking that this Court memorialize the parties' agreements regarding each of the three categories of documents and to set a date certain for production.

After

this motion was filed, Defendant Ford produced additional documents on July 2, 2026. (Guise Dec., ¶4.) Defendant Ford argues this motion was unnecessary, because parties agreed that Ford would produce documents in response to all three categories of RFPs within agreed upon limitations and a request that the parties' agreement be memorialized in an order is not grounds to compel further response.

Based

on the parties' meet and confer correspondence, Ford agreed to provide further responses and further production to all three categories of RFPs. Ford promised to produce responsive documents to the Product Planning and Robert Alexander Materials RFPs on or before June 25, 2026. Ford sent an email on June 25, 2026 at 3:42 pm indicating that those documents would be sent on June 26, 2026 or the following Monday. (Guise Dec., Ex. 1.) Ford's email admitted it would not be complying with the parties' original production date. Ford only produced documents after Plaintiff filed the motion to compel, including an "additional" production on July 2, 2026. (Guise Dec., ¶4.)

Ford

has also not provided the Court with a copy of the further responses in response to the three categories after this motion was filed. Ford's claim that no responsive documents were identified to Rear Crash Task Force Materials category of documents (RFP Nos. 85-86) has not been presented in a verified, code-compliant response. Ford has also not provided a verified, code-compliant response to RFP Nos. 6-9.

Ford claims outside counsel has not retained any file materials responsive to RFP Nos. 6-9, which seek prior deposition and trial transcripts of Ford employees from the case list agreed upon by the parties. Ford must serve a verified, code-complaint response setting forth its claim that it cannot produce responsive documents to RFP Nos. 6-9; it cannot rely on an email to avoid an order compelling further response. (Guise Dec., Ex. 1.)

Plaintiff's

motion to compel was not unnecessary and it is not moot. Plaintiff is entitled to an order compelling further, verified responses to RFP Nos. 6-9, 56 and 85-86 based on the parties' meet and confer correspondence and Ford's failure to fully comply with the parties' agreement.

Plaintiff

requests sanctions against Defendant Ford and its counsel in the amount of \$4,000 based on 6 hours motion prep and 2 hours opposition review, reply preparation and hearing attendance at a rate of \$500/hr. The Court finds that the circumstances here do not warrant the imposition of sanctions as Ford meaningfully participated in an IDC and further good faith meet and confer efforts.

IV.

CONCLUSION

Plaintiff's

Motion to Compel Further Responses and Production and Request for Sanctions is GRANTED. Defendant Ford is ordered to serve verified, code-compliant responses to Plaintiff's RFP Nos. 6-9, set one; 59, set three; and 85-86, set four within 20 days of this Order.

Moving

party to give notice.

Dated: July

28, 2026

Hon. Karen Moskowitz

Judge

of the Superior Court